

24STC29859 24STC29859

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C08%2F07%2F2026

Source SHA-256: 4775ffcefe2a51d7ffee811643902ae64dab776c6ad214c485a517236d3b039c

Case Number: 24STC29859 Hearing Date: August 7, 2026 Dept: 732

L.A. Commercial Group, Inc. v. Associated Construction, LLC, et al.

Friday, August 7, 2024

CASE NUMBER: 24STC29859

UNOPPOSED

Attorney Simrandeep S. Tiwana Motion to Be Relieved as Counsel

Facts: Plaintiff L.A. Commercial Group, Inc. dba Continental Commercial Group seeks to collect from Defendant Associated Construction, LLC on an assigned debt of \$364,328.51 from National Ready Mixed Concrete Company.

Procedural History: On November 13, 2024, Plaintiff filed a form complaint for common counts, and breach of contract. On February 11, 2025, the court entered a default judgment for \$383,260.21. On May 20, 2025, the court entered the parties' stipulation to set aside the default judgment and writ of execution. Defendant answered the complaint on June 6, 2025.

On October 7, 2025, current counsel substituted into the action.

On July 10, 2026, the court continued the June 5, 2026, filed motion to be relived as counsel to August 7, 2026, in order to allow for supplemental briefing regarding the basis for withdrawal.

Analysis

RELIEVED AS COUNSEL

Code of Civil Procedure § 284 states that “[t]he attorney in an action or special proceeding may be changed at any time before or after judgment or final determination” upon either consent of both client and attorney, or “[u]pon order of the court, upon the application of either client or attorney, after notice from one to the other..” (Code Civ. Proc. § 284, subd. (b).) California Rule of Court (“CRC”) Rule 3.1362 states the requirements for a motion to be relieved as counsel under Code of Civil Procedure § 284. No memorandum is required (CRC Rule 3.1362, subd. (b)), but the motion must be accompanied by (1) a declaration stating why a motion has been brought instead of filing a consent (without compromising attorney-client confidentiality) (CRC Rule 3.1362, subd. (c)); (2) proof of service of the motion (CRC Rule 3.1362, subd. (d)); and (3) all hearing dates scheduled in the action or proceeding, including the date of trial. (CRC Rule 3.1362, subd. (e).) “The proposed order relieving counsel must be prepared on the Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers.” (Ibid.)

In continuing the prior order, the court wrote in relevant part: “The present motion pertains to Simrandeep S. Tiwana, of the firm Meyers Nave, counsel for Defendant Associated Construction, LLC. The motion is supported by a declaration of counsel, who states that permissive withdrawal is appropriate under California Rules of Professional Conduct, Rule 1.16, subd. (b)(4), (5), and (10), which pertain to situations in which the client makes it unreasonably difficult to carry out the representation, the client breaches a material term of the agreement, or the attorney believes the tribunal granting permission to withdraw will find good cause therefore. (Tiwana Decl. Att. 2.) The motion includes a proof of service and a proposed order form listing upcoming dates of hearing. Trial is set for October 26, 2027.”

“Counsel does not set forth sufficient grounds to grant the requested relief. The supporting declaration includes no factual information. It cites certain grounds for permissive withdrawal within the Rules of Professional Conduct, including a catchall provision, and states that the attorney seeks relief under these grounds. This is insufficient, as the declaration does not state even in “general terms” why the present motion is brought in lieu of a voluntary substitution. (CRC Rule 3.1362, subd. (c).)”

Counsel appears to have also reserved a second motion though only seeks the same relief. The court consolidates both reserved motions into a single order.

On July 24, 2026, Counsel filed a pleading paper formatted “Notice of Hearing on Motion to Be Relieved as Counsel,” and “Declaration of Simran S. Tiwana.” The July 24, 2026, “notice of hearing” and “declaration,” are not filed on the MC-051 and MC-052 forms. The new papers lack any copy of an order on form MC-053. The new papers include the prior court ruling indicating counsel’s presumed reliance on the prior filed application. To the extent Counsel tried to refile and supersede the prior motion, the new pleadings violate all statutory requirements.

The revised notice and declaration were served by email on July 22, 2026—16 calendar days from the date of the hearing. The motion must be served 16 court days (July 15, 2026) from the date of the hearing. (Code Civ. Proc., §1005, subd. (b).) The 16 days before the hearing also fails to add in the required two additional days for email service. It also remains unstated whether the client agreed to email service. (Code Civ. Proc., §1010.6.) Regardless of a new motion, or notice of a new hearing date of the prior motion as ordered by the court, the notice or new motion are untimely.

Accordingly, the single motion is CONTINUED to permit counsel Simrandeep S. Tiwana to present a timely served, form compliant motion, including a declaration incorporated into the MC-052 form, the “general terms” allowing for relief, and order with all updated hearing date information. The court directs counsel to not reserve a third new date for the next hearing.

Dated: August 7, 2026

Hon. Richard Kemalyan

Judge of the Superior Court